

Multiple Choice (10 marks)

1. The judicial branch of the United States government has the power to _____ the law.
 - (a) interpret
 - (b) make
 - (c) enforce
 - (d) override
2. Which of the following purposes does the 'internal point of view' play in Hart's concept of law?
 - (a) It distinguishes social rules from mere group habits.
 - (b) It defines the judicial function.
 - (c) It illustrates the authority of the legislature.
 - (d) It stresses the relationship between law and justice.
3. What is the fundamental premise of monist theory?
 - (a) Monism posits that international law is superior to domestic laws
 - (b) Monism posits that international and domestic law are part of the same legal order
 - (c) Monism posits that domestic laws are superior to international law
 - (d) Monism posits that domestic and international law never clash
4. Critical Legal Studies (CLS) is often compared to (or with) American realism. Which of the following statements is inaccurate?
 - (a) Both are concerned with the 'law in action.'
 - (b) Both are anti-formalist and sceptical
 - (c) Both adopt a liberal ideology.
 - (d) Both attempt to demystify the law.
5. Who was the first jurist to study comparative aspect of law?
 - (a) Savigny
 - (b) Austin
 - (c) Kelsen
 - (d) Maine

True / False (10 marks)

Answer True or False

6. True or False: The postmodernist project rejects the Kantian concern with individual rights, equality, and justice.
7. True or False: Criminal law is primarily concerned with resolving disputes between private parties and does not involve government prosecution.
8. True or False: Fuller's 'inner morality of law' is best understood as a morality of aspiration, emphasizing ideals over strict legal positivism.
9. True or False: There is no hierarchy among the formal sources of international law, as they operate independently of one another.
10. True or False: Utilitarianism can accurately predict the outcomes of actions based on prior experiences and social contexts.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss Hart's response to Fuller's argument regarding the validity of Nazi law, focusing on the criteria for legal validity and the implications for legal positivism.
12. Discuss the significance of the 'margin of appreciation' doctrine as established in *Handyside v UK* (1976) and its implications for the European Court of Human Rights' jurisprudence.

End of Paper